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इस भाग में भिन्न पृष्ठ संख्या दी जाती है जिससे कि यह अलग संकलन के रूप में रखा जा सके।
Separate paging is given to this Part in order that it may be filed as a separate compilation.

MINISTRY OF LAW AND JUSTICE
(Legislative Department)

New Delhi, the 9*th August,* 2019/*Shravana* 18, 1941 (*Saka*)

The following Act of Parliament received the assent of the President on the 9th August, 2019, and is hereby published for general information:—

THE ARBITRATION AND CONCILIATION (AMENDMENT) ACT, 2019

No. 33 OF 2019

[9*th August*, 2019.]

An Act further to amend the Arbitration and Conciliation Act, 1996.

BE it enacted by Parliament in the Seventieth Year of the Republic of India as follows:—

Short title and commencement.

1. (*1*) This Act may be called the Arbitration and Conciliation (Amendment) Act, 2019.

(*2*) Save as otherwise provided in this Act, it shall come into force on such date as the Central Government may, by notification in the Official Gazette, appoint and different dates may be appointed for different provisions of this Act and any reference in any such provision to the commencement of this Act shall be construed as a reference to the coming into force of that provision.

Amendment of section 2.

26 of 1996.

2. In the Arbitration and Conciliation Act, 1996 (hereinafter referred to as the principal Act), in section 2,—

(*i*) in sub-section (*1*),—

(*A*) after clause (*c*), the following clause shall be inserted, namely:—

'(*ca*) "arbitral institution" means an arbitral institution designated by the Supreme Court or a High Court under this Act;';

(*B*) after clause (*h*), the following clauses shall be inserted, namely:—

'(*i*) "prescribed" means prescribed by rules made under this Act;

(*j*) "regulations" means the regulations made by the Council under this Act.';

(*ii*) in sub-section (*2*), in the proviso, for the word, brackets and letter "clause (*a*)", the word, brackets and letter "clause (*b*)" shall be substituted.

Amendment of section 11.

3. In section 11 of the principal Act,—

(*i*) after sub-section (*3*), the following sub-section shall be inserted, namely:—

"(*3A*) The Supreme Court and the High Court shall have the power to designate, arbitral institutions, from time to time, which have been graded by the Council under section 43-I, for the purposes of this Act:

Provided that in respect of those High Court jurisdictions, where no graded arbitral institution are available, then, the Chief Justice of the concerned High Court may maintain a panel of arbitrators for discharging the functions and duties of arbitral institution and any reference to the arbitrator shall be deemed to be an arbitral institution for the purposes of this section and the arbitrator appointed by a party shall be entitled to such fee at the rate as specified in the Fourth Schedule:

Provided further that the Chief Justice of the concerned High Court may, from time to time, review the panel of arbitrators.";

(*ii*) in sub-section (*4*), in the long line, for the portion beginning with "the appointment shall be made" and ending with ''designated by such Court", the following shall be substituted, namely:—

"the appointment shall be made, on an application of the party, by the arbitral institution designated by the Supreme Court, in case of international commercial arbitration, or by the High Court, in case of arbitrations other than international commercial arbitration, as the case may be";

(*iii*) in sub-section (*5*), for the portion beginning with "the appointment shall be made" and ending with ''designated by such Court", the following shall be substituted, namely:—

"the appointment shall be made on an application of the party in accordance with the provisions contained in sub-section (*4*)";

(*iv*) in sub-section (*6*), in the long line, for the portion beginning with ''party may request" and ending with ''designated by such Court", the following shall be substituted, namely:—

"the appointment shall be made, on an application of the party, by the arbitral institution designated by the Supreme Court, in case of international commercial arbitration, or by the High Court, in case of arbitrations other than international commercial arbitration, as the case may be";

(*v*) sub-sections (*6A*) and (*7*) shall be omitted;

(*vi*) in sub-section (*8*), for the words "The Supreme Court or, as the case may be, the High Court or the person or institution designated by such Court", the words, brackets and figures "The arbitral institution referred to in sub-sections (*4*), (*5*) and (*6*)" shall be substituted;

(*vii*) in sub-section (*9*), for the words "the Supreme Court or the person or institution designated by that Court", the words "the arbitral institution designated by the Supreme Court" shall be substituted;

(*viii*) sub-section (*10*) shall be omitted;

(*ix*) for sub-sections (*11*) to (*14*), the following sub-sections shall be substituted, namely:—

"(*11*) Where more than one request has been made under sub-section (*4*) or sub-section (*5*) or sub-section (*6*) to different arbitral institutions, the arbitral institution to which the request has been first made under the relevant sub-section shall be competent to appoint.

(*12*) Where the matter referred to in sub-sections (*4*), (*5*), (*6*) and (*8*) arise in an international commercial arbitration or any other arbitration, the reference to the arbitral institution in those sub-sections shall be construed as a reference to the arbitral institution designated under sub-section (*3A*).

(*13*) An application made under this section for appointment of an arbitrator or arbitrators shall be disposed of by the arbitral institution within a period of thirty days from the date of service of notice on the opposite party.

(*14*) The arbitral institution shall determine the fees of the arbitral tribunal and the manner of its payment to the arbitral tribunal subject to the rates specified in the Fourth Schedule.

Explanation.—For the removal of doubts, it is hereby clarified that this sub-section shall not apply to international commercial arbitration and in arbitrations (other than international commercial arbitration) where parties have agreed for determination of fees as per the rules of an arbitral institution.".

Amendment of section 17.

4. In section 17 of the principal Act, in sub-section (*1*), the words and figures "or at any time after the making of the arbitral award but before it is enforced in accordance with section 36" shall be omitted.

Amendment of section 23.

5. In section 23 of the principal Act, after sub-section (*3*), the following sub-section shall be inserted, namely:—

"(*4*) The statement of claim and defence under this section shall be completed within a period of six months from the date the arbitrator or all the arbitrators, as the case may be, received notice, in writing, of their appointment.".

Amendment of section 29A.

6. In section 29A of the principal Act,—

(*a*) for sub-section (*1*), the following sub-section shall be substituted, namely:—

"(*1*) The award in matters other than international commercial arbitration shall be made by the arbitral tribunal within a period of twelve months from the date of completion of pleadings under sub-section (*4*) of section 23:

Provided that the award in the matter of international commercial arbitration may be made as expeditiously as possible and endeavour may be made to dispose of the matter within a period of twelve months from the date of completion of pleadings under sub-section (*4*) of section 23.";

(*b*) in sub-section (*4*), after the proviso, the following provisos shall be inserted, namely:—

"Provided further that where an application under sub-section (*5*) is pending, the mandate of the arbitrator shall continue till the disposal of the said application:

Provided also that the arbitrator shall be given an opportunity of being heard before the fees is reduced.".

Amendment of section 34.

7. In section 34 of the principal Act, in sub-section (*2*), in clause (*a*), for the words "furnishes proof that", the words "establishes on the basis of the record of the arbitral tribunal that" shall be substituted.

Amendment of section 37.

8. In section 37 of the principal Act, in sub-section (*1*), for the words "An appeal", the words "Notwithstanding anything contained in any other law for the time being in force, an appeal" shall be substituted.